

## **TENTATIVE RULINGS**

### **DEPARTMENT N17**

**Judge Craig L. Griffin**

**Date: September 25, 2023**

**Time: 2:00PM**

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| # | Case Name                                                        | Tentative                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |
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| 1 | Aska Sakan, Inc. v. Ramadan Mohamed Omar aka Mohamed Ben Ramadan | <p>Plaintiff Aska Sakan, Inc.'s ("Plaintiff") motion for terminating, issue, evidence, and/or monetary sanctions against Defendant Mohamed Omar Ramadan ("Defendant") is <b>DENIED</b>.</p> <p>Sanctions are warranted when there are "[m]isuses of the discovery process," such as "[f]ailing to respond or to submit to an authorized method of discovery" or "[d]isobeying a court order to provide discovery." (Code Civ. Proc., §§ 2023.010; 2023.030.) Code of Civil Procedure sections 2030.290(c) and 2031.300(c) provide that if a party fails to obey an order compelling discovery responses, the court may make those orders that are just, including the imposition of an issue sanction, an evidence sanction, or a terminating sanction, and/or monetary sanctions.</p> <p>"Discovery sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct." (<i>Williams v. Russ</i> (2008) 167 Cal.App.4th 1215, 1223.)</p> |

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|   |                                                                | <p>Plaintiff asks for terminating, issue and evidence sanctions against Defendant for his failure to obey the Court's March 6, 2023, and March 13, 2023, orders to provide further discovery responses. The Opposition shows that on June 20, 2023, and September 11, 2023, Defendant served supplemental responses in compliance with the Court's discovery order. (See Exhibits 1-4 to Opposition.) The Opposition also reflects that Defendant paid the monetary sanctions required by the discovery order on or about July 3, 2023. (Declaration of Mark S. Martinez, ¶ 11; Declaration of Mohamed Omar Ramadan, ¶ 2 and Exhibit 7 thereto.)</p> <p>The Opposition and supporting papers thus show that Defendant has complied with his discovery obligations pursuant to the Court's order. Further, although Defendant failed to timely obey the Court's discovery order, the evidence does not establish that the failure was willful or that Defendant has otherwise engaged in a pattern of willful discovery abuse. Rather, the failure to timely respond was due to former counsel's inadvertence and neglect. (Declaration of Mark S. Martinez, ¶¶ 6-7, 9.) Plaintiff submitted no reply and thus raises no argument to dispute the foregoing.</p> <p>Accordingly, the motion for terminating, issue and evidence sanctions is <b>DENIED</b>.</p> <p>Plaintiff also requests monetary sanctions against Defendant and his counsel for Defendant's failure to obey the Court's discovery order. The Court finds monetary sanctions are not warranted here as Plaintiff filed its sanctions motion without making any attempt to contact Defendant's former counsel about the tardy responses. (Declaration of Mark S. Martinez, ¶ 8.) Although a meet and confer is not required for this motion, given Mr. Martinez's statement that he inadvertently failed to timely serve the supplemental responses and that he would have remedied the situation had he been contacted by Plaintiff's counsel (<i>see id.</i>), this motion could likely have been avoided had Plaintiff simply inquired from counsel about the responses prior to filing the motion.</p> <p>Thus, the motion for monetary sanctions is <b>DENIED</b>.</p> <p>Counsel for Defendant is to give notice of this ruling.</p> |
| 2 | Balboa Capital Corporation vs. United Plumbing and Drain, Inc. | <p>Defendants United Plumbing And Drain, Inc. ("United" individually) and Milivoje Balesevic's ("Balesevic" individually; "Defendants" together) Motion to Set Aside Default and Default Judgment ("Motion") is <b>GRANTED</b>.</p> <p>The court may relieve a party from a default or default judgment when service of a summons has not resulted in actual notice to the party. (Civ. Proc. Code § 473.5(a).) "[A] default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void." (<i>Dill v. Berquist Constr. Co.</i> (1994) 24 Cal. App. 4th 1426, 1444 ("<i>Dill</i>").) "A motion to vacate a judgment on the ground that it is void is timely if made within a reasonable time (8 Witkin, Cal.Procedure, supra, Attack on Judgment in Trial Court, § 186, pp. 587-588), which has been</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                            |

determined to be any time within two years of the entry of the judgment. (*Dill, supra*, 24 Cal. App. 4th 1426, 1444.)

"[T]he policy of the law is to have every litigated case tried upon its merits, and it looks with disfavor upon a party, who, regardless of the merits of the case, attempts to take advantage of the mistake, surprise, inadvertence, or neglect of his adversary." (*Lieberman v. Aetna Ins. Co.* (1967) 249 Cal. App. 2d 515, 524.)

Here, it does not appear that Defendants were properly served the summons and complaint in this action by plaintiff Balboa Capital Corporation ("Plaintiff").

As to United, the corporate entity, service must be made to someone on behalf of the entity pursuant to Civ. Proc. Code § 416.10. (*Dill, supra*, 24 Cal. App. 4th at 1437.) Instead, Plaintiff allegedly substitute served one Goran Balesevic ("Goran") at his home address. There is no evidence Goran is an agent for service of process or person with authority to accept service on behalf of United, nor that Goran's home address is in any way associated with United. Even if Goran is Balesevic's son, that does not automatically make Goran an agent for United, nor Goran's addresses an appropriate service address. It also appears that Plaintiff only attempted to serve United's actual agent for service of process once and did not attempt to ascertain the agent's new address. Goran disputes that he was ever served a copy of the summons and complaint in any manner or form. (Goran Decl. ¶¶ 3-4.) As service was improper as to United and as the Motion was brought in a timely manner, the Motion must be granted as to United.

As to Balesevic, Plaintiff also allegedly substitute served Balesevic by way of Goran at Goran's home address. (Civ. Pro. Code § 415.20(b).) However, Balesevic and Goran produced declarations stating that Balesevic and Goran were not members of each other's households during 2022 (when service allegedly occurred). (Goran Decl. ¶ 2; Balesevic Decl. ¶ 9.) Additionally, Balesevic claims to have been living in Bosnia since 2018, and only makes trips to the U.S. approximately twice per year for medical treatment. (Balesevic ¶ 7.) Although these declarations are not backed by any evidence, neither is Plaintiff's opposition as most of the evidence thereto is not authenticated and/or hearsay of some sort. At this time, given the service on United was improper, the court finds the service on Balesevic to also have been improper.

Finally, Defendants have provided a copy of their proposed answer to the complaint and have expressed their intent to litigate this matter. (Garcia Decl. ¶ 9, Ex. 4.)

The Motion is granted. The court hereby orders the defaults and default judgment to be void and are therefore vacated. Defendants are ordered to file and serve their answer within five-days of the hearing.

**Objections To Beyer Declaration:**

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|   |                                                         | <p>Sustained as to Nos. 1 (best evidence, hearsay, irrelevant (as to photo)); 2 (multiple hearsay); 3-4 (lacks personal knowledge, hearsay).</p> <p><b>Objections To Agbayani Declaration:</b></p> <p>Sustained as to Nos. 1-4 (lacks personal knowledge, foundation, speculation, hearsay).</p> <p>Defendants to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
| 3 | Cavalry SPV I, LLC v. James Bowie                       | <p>The unopposed Motion to be Relieved as Counsel of Record, filed by attorneys Thomas J. Prenovost and Brian D. Cronin as to the representation of James Bowie is <b>GRANTED</b>. The Order will become effective upon filing of a proof of service reflecting service of the resulting Order on the client.</p> <p>Moving counsel is ordered to give notice of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                           |
| 4 | Centennial Realty Brokerage & Investment Group v. Wolfe | <p>Plaintiff Centennial Realty Brokerage &amp; Investment Corporation has demurred to the first amended answer of defendants Jeffrey Wolfe and Emily Wolfe, as trustees of the Jeffrey &amp; Emily Wolfe Trust. Whereas the initial answer filed on May 18, 2023 contained a general denial and 41 affirmative defenses, the first amended answer, which was filed on May 31, 2023, contains a general denial and ten affirmative defenses. Nevertheless, plaintiff has demurred to all ten affirmative defenses.</p> <p>Code Civ. Proc. § 430.30 lists three grounds for demurrer to answer: (1) the answer does not state facts sufficient to constitute a defense; (2) the answer is "uncertain," which includes ambiguous, and unintelligible; and (3) when the answer pleads a contract, it cannot be ascertained whether the alleged contract is written or oral. Each ground must be in a separate paragraph and state whether it is directed to the entire answer or to specified defenses. CRC 3.1320(a).</p> <p>The demurrer (ROA 25) is convoluted but indicates that plaintiff is challenging the first, second, third, fourth, fifth, sixth, eighth, ninth, and tenth affirmative defenses as uncertain for various reasons, including that they do not refer to the specific causes of action to which they relate, that they are duplicative and redundant of other affirmative defenses, and that they are not properly brought against claims sounding in contract. It also indicates that plaintiff challenges the fourth, sixth, and seventh affirmative defenses as not stating sufficient facts to constitute a defense.</p> <p>A demurrer to an answer on the ground of uncertainty must specify in what way the answer is uncertain. See <u>Coons v. Thompson</u> (1946) 75 Cal.App.2d 687, 690. As previously mentioned, plaintiff contends that some of the affirmative defenses, particularly the first, second, third, fourth, fifth, eighth, and tenth affirmative defense are uncertain because they do not refer to the specific causes of action to which they are directed as required by Code Civ. Proc. § 431.30(g). This subdivision provides that defenses in an answer "shall be separately stated, and the several defenses shall</p> |

refer to the causes of action which they are intended to answer, in a manner by which they may be intelligibly distinguished.”

However, as pointed out in defendants’ opposition, plaintiff is incorrect in this assertion, as two of these challenged affirmative defenses reference the particular causes of action to which they are directed. Specifically, the first and fifth affirmative defenses reference the causes of action to which they are addressed. Although the other challenged affirmative defenses may not explicitly identify specific causes of action as required by the Code, a fair reading of the allegations in these affirmative defenses indicates which claims in the complaint are being challenged. (See Code Civ. Proc. § 452, which provides that, “[i]n the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties.”) In other words, the defenses are not so uncertain as to fail to give plaintiff notice of how defendants are challenging the claims in the complaint.

Plaintiff contends that the sixth, eighth, and ninth affirmative defenses, which are for “good faith through mistaken belief,” “action in bad faith,” and “frivolous action” are uncertain and unintelligible as well as duplicative and redundant of each other. Again, a fair reading of the allegations in the particular affirmative defenses gives plaintiff notice of how defendants are challenging the claims in the complaint.

Plaintiff additionally contends that the eighth affirmative defense is uncertain because it refers to “cross-defendants” when no cross-complaint has been filed. This appears to be a simple error on the part of the defendants that can be overlooked.

A demurrer to an answer on the ground of failure to state facts sufficient to constitute a defense is sometimes called a general demurrer and shares many characteristics with a general demurrer to a complaint. The Court may sustain a general demurrer to a defense that the law does not recognize, that lacks essential allegations of fact, or is stated in the form of conclusions. See Universal Land Co. v. All Persons (1959) 172 Cal.App.2d 739, 741; Youdall v. Kaufman (1921) 55 Cal.App.3d 363, 368.

The same rules for pleading of “ultimate facts” rather than “legal conclusions” that apply to allegations in a complaint apply to pleading defenses in an answer. A defendant who wishes to assert a particular defense must plead the essential facts of that defense in the answer. See Code Civ. Proc. 431.30(b).

Affirmative defenses should be pled whenever, in good faith and with the exercise of due care, counsel can identify facts on which to base them. Substantive law determines the issues on which the defendant has the burden of proof and thus the specific defenses available in response to an individual cause of action.

Plaintiff challenges the sufficiency of the allegations in the fourth, sixth, and seventh affirmative defenses, which are for estoppel,

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|   |                                  | <p>"good faith through mistaken belief," and comparative negligence, respectively.</p> <p>In the fourth affirmative defense, defendants allege that plaintiff's agents engaged in conduct and activities that estop plaintiff from seeking relief against defendants. They allege that, among other things, plaintiff's agents made misrepresentations to them to induce them into entering into the agreement. They also allege that plaintiff's agents turned away prospective buyers who would not permit plaintiff to represent them as well as the defendants and that plaintiff did not disclose the potential dual agency to defendants or obtain their informed consent. They also allege that plaintiff's agents falsely told defendants that certain buyers were not interested in purchasing the property. These facts are sufficient to set forth an affirmative defense of estoppel.</p> <p>The sixth affirmative defense alleges that the second cause of action in the complaint is barred if defendants are correct with respect to their allegations that plaintiff "engaged in the conduct referenced in several affirmative defenses above" and sufficient for them to "terminate" plaintiff." Although this affirmative defense could have been more clear, a fair reading indicates that defendants are contending that they believed they had a good faith reason to terminate their relationship with the plaintiff.</p> <p>The seventh affirmative defense is labeled as one for comparative negligence. Although a claim of comparative negligence is obviously not applicable to causes of action sounding in contract, this affirmative defense is specifically directed to the cause of action for breach of the implied covenant of good faith and fair dealing, and appears to be alleging bad faith on the part of the plaintiff rather than comparative negligence per se.</p> <p>The general and special demurrers of plaintiff Centennial Realty Brokerage &amp; Investment Corporation to all ten affirmative defenses in the first amended answer of defendants Jeffrey Wolfe and Emily Wolfe, as trustees of the Jeffrey &amp; Emily Wolfe Trust are <b>OVERRULED</b>.</p> <p>Defendants are to give notice.</p> |
| 5 | Mann, et. al. v. Parkin, et. al. | <p>The motion by Defendant/Cross-Complainant Drew Parkin ("Parkin"), to compel Plaintiff/Cross-Defendant Alex Mann ("Mann") to provide responses to Requests for Production, Set One, is <b>DENIED</b>.</p> <p>Parkin asserts that responses were not timely served and that he therefore seeks an order compelling responses without objections pursuant to CCP §2031.270. Parkin states that Requests for Production of Documents, Set One, were served by email on 5/25/23. A subsequent two week extension was granted to respond. This made the responses due on 7/12/23.</p> <p>Attached to his Opposition, Mann submits a copy of the responses along with a proof of service signed by Cliff Schneider showing the</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

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|   |                                        | <p>responses were served on 7/11/23. Although Parkin claims he never received the responses via U.S. Mail, he did receive a courtesy copy of the responses one month before filing the subject motion. The crux of Parkin's argument in his motion is that Mr. Schneider cannot be trusted and that he fabricated the proof of service. However, Mr. Schneider has submitted a declaration detailing the process he followed in serving the discovery responses. Parkin's "metadata" argument not only lacks foundation but is specifically addressed by Mr. Schneider. The Court also notes that Parkin's argument he did not receive the responses in the mail turns in part on the assumption that Mr. Smith is more trustworthy than Mr. Schneider, when both are officers of the Court. The Court will not make this assumption.</p> <p>Accordingly the motion is DENIED.</p> <p>CCP §2031.310(h) states that the court shall impose sanctions against "any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a further response to a demand, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Here, Parkin lacked substantial justification for filing the subject motion.</p> <p>Accordingly, the Court GRANTS Mann's request for sanctions and ORDERS Drew Parkin to pay sanctions of \$1,815 to Alex Mann, through his attorney of record, within 30 days.</p> <p>Counsel for moving party is ordered to give notice of this ruling.</p> |
| 6 | Nachtrieb v. County of Orange          | O/C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 7 | Pressney vs. Intermarketing Media, LLC | <p>Plaintiff John Pressney's ("Plaintiff") Motion to Compel ("Motion") defendant Intermarketing Media, LLC dba Resort Advisory Group's ("RAG") initial responses to Requests for Production, Set Two ("RFP") is <b>TENTATIVELY GRANTED</b>.</p> <p>RAG improperly failed to serve any response to the RFP, and only lodged an objection in its opposition to the Motion. However, the objection is one based upon third-party privacy rights, which are important and protected under the state Constitution. (Cal. Const., art. I, § 1.)" (<i>Williams v. Superior Court</i> (2017) 3 Cal. 5th 531, 552 ("<i>Williams</i>").)</p> <p>"Unless otherwise limited by order of the court . . . any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. . ." (Civ. Proc. Code § 2017.010.)</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                        |

"Protection of informational privacy is the provision's central concern. (*Hill v. National Collegiate Athletic Assn.* (1994) 7 Cal.4th 1, 35 ("*Hill*")) In *Hill*, we established a framework for evaluating potential invasions of privacy. The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. (*Id.*, at 35–37.) The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. (*Id.*, at 37–40)." (*Williams, supra*, 3 Cal. 5th at 552.) "The *Hill* test, conceived in the context of a pleaded cause of action for invasion of privacy, has been applied more broadly, including to circumstances where litigation requires a court to reconcile asserted privacy interests with competing claims for access to third party contact information." (*Id.*)

"To meet this standard [under Civ. Proc. Code § 2017.010], a party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities. [Citation.] In assessing the party's proffered justification, courts must keep in mind the more limited scope of discovery available from nonparties. [Citation.][¶] Even if information is otherwise discoverable, it may be protected by a constitutional or statutory privilege." (*Bd. of Registered Nursing v. Superior Ct. of Orange Cnty.* (2021) 59 Cal. App. 5th 1011, 1039.)

Here, Plaintiffs allege Defendants, a timeshare exit company, and their agents made multiple misrepresentations regarding Defendants' ability to get Plaintiffs out of a timeshare. Plaintiffs also allege misrepresentations to Plaintiffs regarding retaining Defendants charged an unconscionably large fee for doing little more than referring Plaintiffs to an attorney and based the fee on Plaintiffs' financials.

The records sought would be relevant in that they would provide additional evidence pertaining to RAG's clients, the fees charged, what service RAG provided to those clients, how many client timeshares were cancelled, refunded, and/or foreclosed upon. It would show how many times RAG recommended clients stop making payments on timeshares (as it did with Plaintiffs), fees charged to other clients, financing fees RAG charged, as well as evidence supporting RAG's alleged 100% success rate in cancelling timeshares with major developers.

Good cause exists to require the documents be produced. However, the issue now is how to protect the third-party privacy rights and to permit Plaintiff to obtain useful information. The information sought, including contact and financial information, among others, is the type of information protected by the right to privacy.

The court requires parties to appear at the hearing to discuss how production of relevant information and while protecting third-party



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|   |                                             | <p>privacy rights can be achieved. This may need to occur through redacting records, assigning non-personally identifying numbers to individual cases so they can be tracked across documents, a protective order, or some other means. However, the court will discuss this with the parties at the 09/25/23 hearing date and will most likely continue the hearing to require parties to meet and confer privately to work out an arrangement that meets the twin goals of production and privacy protections.</p> <p>Once a workable plan has been presented to the court, the court will grant the motion based on that plan.</p> <p>No monetary sanctions will be awarded at this time as the issue of third-party privacy rights was an appropriate reason for not initially producing the records.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |
| 8 | Szeto v. Woo                                | O/C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 9 | Law Office of Jeffrey G. Jacobs v. Isaacson | <p>Before the Court at present are four unopposed discovery motions, filed on 8/24/23 by Plaintiff Law Office of Jeffrey G. Jacobs ("Plaintiff"), against Defendant Ian Isaacson ("Defendant").</p> <p>The Motions filed as ROAs 43, 42 and 45, respectively, demonstrate that Form Interrogatories, Special Interrogatories, and Requests for Production, all Set One, were propounded by Plaintiff to Defendant on 12/23/22. (ROA 40, ¶ 2, Exs. B-D.) No responses were ever provided, despite repeated requests. (Id. at ¶¶ 4-17.) If responses are not timely provided to Interrogatories or Requests for Production, all objections thereto are waived, and responses may be compelled. (C.C.P. §§ 2030.290(a), (b), 2031.300(a), (b).) All three Motions are therefore <b>GRANTED</b> on the merits. Defendant is to provide verified responses, without objections, within 15 days after service of notice of this ruling.</p> <p>The Motion filed as ROA 44 demonstrates that Requests for Admission, Set One, were propounded by Plaintiff on 12/23/22. (ROA 40, ¶ 2, Ex. A.) No responses were ever provided despite repeated requests. (Id. at ¶¶ 4-17.) As no responses were timely provided, all objections have been waived. (C.C.P. §2033.280(a).) Unless responses are provided before the date of the hearing, the Court may properly order that the matters specified in the requests be deemed admitted. (C.C.P. §2033.280(b)(c).) Therefore, unless Defendant can present evidence by the time of the hearing that responses to the Requests for Admission have been served, and that such responses are in substantial compliance with C.C.P. § 2033.220, the Motion shall be <b>GRANTED</b>.</p> <p>Plaintiff's requests for monetary sanctions are <b>GRANTED IN PART</b>. As Plaintiff here is effectively self-represented, it cannot recover its "attorney's fees" as a sanction. (See <i>Musaelian v. Adams</i> (2009) 45 Cal.4th 512, 519; <i>Trope v. Katz</i> (1995) 11 Cal.4th 274, 280.) But it can recover its filing costs, in the amount of \$60 per motion. The Court thus finds that only the reduced sum of \$60 per motion, for a total of \$240 in sanctions, should be imposed on Defendant here. Those sanctions are to be paid to Plaintiff, through its counsel of record, within 30 days after service of notice of this ruling.</p> |

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|    |                                                                          | Counsel for Plaintiff to give notice.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |
| 10 | Back Bay Westminster, LLC v. Professional Real Estate Center, Inc. et al | <p>Before the Court at present is the Demurrer filed by defendants Kevin Conklin and Back Bay Development LLC (collectively here, as moving parties, "MPs"), as to the Third and Fourth Causes of Action (each a "COA") asserted in the FAC filed by Plaintiff Back Bay Westminster, LLC ("Plaintiff") on 4/18/23.</p> <p>The Demurrer is <b>SUSTAINED</b> with 15 days leave to amend on COAs 3 and 4, as both COAs lack the requisite specificity for such claims.</p> <p>On a fraud claim, every element must be alleged in full, factually and specifically, including facts that show how, when, where, to whom, and by what means the representations were tendered, and when alleged against an entity, the names of the persons who made the misrepresentations, their authority to speak for the corporation, to whom they spoke, what they said or wrote, and when it was said or written. (<i>Lazar v. Sup. Court</i> (1996) 12 Cal.4th 631, 638, 645; <i>Philipson &amp; Simon v. Gulsvig</i> (2007) 154 Cal.App.4th 347, 363; <i>Tarmann v. State Farm Mut. Auto. Ins. Co.</i> (1991) 2 Cal.App.4th 153, 157.)</p> <p>Here, COA 3 again just vaguely asserts at ¶ 38 that multiple defendants represented that "there was no written Residential After Sale Agreement with the seller and there were no encumbrances and/or issues pertaining or relating to the real property." That plainly fails to adequately specify who said what, how, when, where, to whom, and by what means the alleged misrepresentations were tendered. Which of them said what, to who, when? Orally, or in a writing? And in what context – responding to a specific question, or something else?</p> <p>This COA also seems to be attempting to assert some amalgam of a concealment claim and an affirmative misrepresentation claim, without identifying the specifics as to which is asserted against each particular defendant and why. The circumstances which allegedly warranted justifiable reliance also lack adequate specificity.</p> <p>The Demurrer as to COA 3 is therefore <b>SUSTAINED</b>, with 15 days leave to amend.</p> <p>COA 4 similarly lacks adequate specificity. A plaintiff alleging unfair business practices must state with reasonable particularity the facts supporting the statutory elements of the violation. (<i>Khoury v. Maly's of California, Inc.</i> (1993) 14 Cal.App.4th 612, 619.) Here, COA 4 just vaguely asserts at ¶ 52 that the prior allegations are the basis for the claim. The Demurrer as to COA 4 is therefore also <b>SUSTAINED</b>, with 15 days leave to amend.</p> <p>Counsel for MPs is to give notice of this ruling.</p> |
| 11 | Lopez v. Bock                                                            | O/C                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 12 | Nijst v. Anaheim Global Medical                                          | The Motion for Summary Adjudication filed by Plaintiff Christopher Nijst by and through his guardian ad litem, Susan Russell ("Plaintiff") is DENIED.                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                               |

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|    | Center Inc., et al.                                    | <p>A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment. . .” (Civ. Proc. Code § 437c(f).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact . . . .” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (Id. at 851.)</p> <p>“(a)(1) A party may move for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Civ. Proc. Code § 437c(f).) Civ. Proc. Code § 437c(t) allows for a party to move for summary adjudication on some other issue only if prior to filing that motion, the parties file a joint stipulation stating the issue to be adjudicated.</p> <p>Here, Plaintiff requests summary adjudication as to Defendant Anaheim Global Medical Center, Inc.(“AGMC”)’s vicarious liability for the negligence of Dr. Paulo Reyes (“Dr. Reyes”), as Defendant’s ostensible agent. However, the issue of agency does not dispose of any cause of action, affirmative defense, claim for damages, or issue of duty. Plaintiff asserts that it is directly related to an issue of duty but provides no authority that supports the position that this is enough to seek summary adjudication. As the parties have not filed a joint stipulation to seek summary adjudication on this issue, nor has the court granted leave to file such a motion, the motion is DENIED.</p> <p>Defendant Anaheim Global Medical Center, Inc. to give notice.</p> |
| 13 | PNC Equipment Finance, LLC v. Urban Stucco, Inc. et al | <p>The Applications for Writ of Possession filed by Plaintiff PNC Equipment Finance, LLC dba JCB Finance (“Plaintiff”) are GRANTED as to the 2020 JCB 3TS-8T Compact Track Loader, Serial Number 2958265.</p> <p>Plaintiff’s applications comply with Code of Civil Procedure section 512.010. The declaration demonstrates the probable validity of Plaintiff’s claim to possession of the equipment under Code of Civil Procedure section 512.010.</p> <p>Per Code of Civil Procedure section 515.010(a), Plaintiff is required to file an undertaking with the court in the amount of \$25,376.20, representing twice the amount of Defendants’ interest in the property, calculated as the market value minus the amount due and</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                       |

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|    |  | <p>owing.</p> <p>Defendants shall cooperate in transferring possession of the equipment to Plaintiff. Failure to turn over possession of the property may subject Defendants to being held in contempt of Court. (Code Civ. Proc. § 512.70.)</p> <p>Moving party to give notice.</p> |
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